

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

20. GAGE TAYLOR V. KAYLA TAYLOR

23FL1171

Petitioner filed a Request for Order (RFO) on March 13, 2026, requesting reimbursement for uninsured medical expenses as well as enforcement of sanctions. Respondent and the Department of Child Support Services (DCSS) were personally served on March 13, 2026 and March 16, 2026 respectively.

DCSS filed a Responsive Declaration on March 25, 2026, requesting the child support issues be heard in Department 10, before the child support commissioner. Petitioner and Respondent were served on March 24, 2026.

Respondent filed a Responsive Declaration on April 8, 2026. There is no Proof of Service for this document. Even if the document had been properly served, Code of Civil Procedure section 1005(b) states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 3rd the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.

The court finds good cause to continue this matter to be heard on (Monday, June 22nd at 8:30 AM) in Department 10. The court reserves jurisdiction over the request for sanctions.

All prior orders remain in full force and effect.

TENTATIVE RULING #20: THE COURT FINDS GOOD CAUSE TO CONTINUE THIS MATTER TO BE HEARD ON (MONDAY, JUNE 22ND AT 8:30 AM) IN DEPARTMENT 10. THE COURT RESERVES JURISDICTION OVER THE REQUEST FOR SANCTIONS. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

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BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.